

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2020-6202 & 2020-6204

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF PAUL MICHAEL SULLIVAN, LICENSE NO. LPC.0015890,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (“Board”) and Paul Michael Sullivan (“Respondent”), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).

2. Respondent was licensed to practice as a professional counselor (“LPC”) in the State of Colorado on November 22, 2019, having been issued license number LPC.0015890, and is currently so licensed.

3. This Order is a full and final resolution of case numbers 2020-6202 & 2020-6204. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4. Respondent admits no liability but acknowledges that if the Board were to prove the allegations at a hearing, the allegations would constitute a prima facie case for a violation of the Act and would subject Respondent to discipline. The Board’s allegations are as follows:

a. On or about September 17, 2020, the Board received a complaint against Respondent.

b. Respondent has been alleged to have engaged in a sexual relationship, as defined in the Mental Health Practice Act, with a former client after a therapeutic relationship ended, but within two years after the end of the therapeutic relationship.

c. Respondent failed to uphold the ethics and standards of the profession by engaging in this dual relationship.

5. Respondent makes no admission of liability. Respondent agrees to a relinquishment to avoid the stress and uncertainty of litigation. Respondent admits that if the allegations were proven by the Board at a hearing, it would constitute a violation of 12-245-224(1)(r), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(r) Has engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period in which a therapeutic relationship exists.

RELINQUISHMENT

6. Respondent hereby relinquishes his license and the right to practice as a Licensed Professional Counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S.

7. Following relinquishment of his license, Respondent shall not perform any act which requires he be licensed to perform psychotherapy pursuant to section 12-245-202(14), C.R.S. without being validly licensed, certified or registered to do the same.

8. Respondent understands that if he applies for licensure as a Licensed Professional Counselor at any future time, Respondent will be required to comply with all criteria for initial license that exist at the time of application.

9. Respondent also agrees he will not register as a psychotherapist in the State of Colorado or perform any act which requires he be licensed to perform psychotherapy pursuant to section 12-245-202(14), C.R.S. without being validly licensed, certified or registered to do the same.

TERMS AND CONDITIONS

10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

12. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

13. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

14. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

15. Respondent shall obey all state and federal laws while this Order is in effect.

16. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

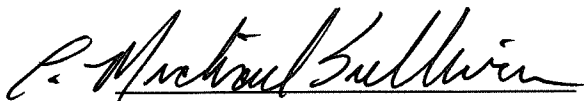
17. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

18. This Order shall be admissible as evidence at any hearing held before the Board.

19. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

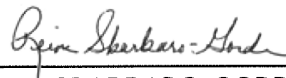
RESPONDENT



PAUL MICHAEL SULLIVAN,
LICENSE NO. LPC.0015890

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 18 day of November,
2021.

APPROVED AS TO FORM
FOR RESPONDENT



PHILIP M. BLUESTEIN
Rocky Mountain Health Care Law